EXECUTION VERSION

SOLAR LOAN AGREEMENT

CROSSBOUNDARY ENERGY

SOLAR LOAN AGREEMENT

This Solar Loan Agreement (the "**Agreement**") is made:

BETWEEN

ZOODLABS (SL) LIMITED (the "**Borrower**" which expression shall include and extend to its permitted successors in title and assigns) a private company limited by shares incorporated under the laws of the **SIERRA LEONE** and registered under the company number **SL 121218200ZOODL04614**, having its registered address 1 Bendu Drive, Lumley Beach, Freetown, Sierra Leone;

AND

CROSSBOUNDARY ENERGY CREDIT HOLDINGS (the "**Lender**" which expression shall include and extend to its permitted successors in title and assigns) a company limited by shares incorporated under the laws of **MAURITIUS** and registered under the company number **137794/GBL**, having its registered address at: C/o Axis Fiduciary Ltd, 2nd Floor, The AXIS, 26 Bank Street, Cybercity, Ebene 72201, Mauritius.

Hereinafter, the Borrower and the Lender are referred individually as a "**Party**" or collectively as the "**Parties**".

WHEREAS:

(A) The Borrower desires, and the Lender is willing to provide, a credit facility in order for the Borrower to develop the Facilities.

(B) The Borrower desires to grant the Security Interest in order to secure the credit facility to be provided by the Lender.

(C) The Parties agree to enter into this relationship pursuant to the terms and subject to the conditions as set forth in this Agreement.

The following documents shall be deemed to form and be read and construed as part of this Agreement:

(a) the Project Loan Conditions;

(b) the General Terms and Conditions; and

(c) the ANNEXURES.

IT IS NOW THEREFORE AGREED:

Part I

Project Loan Conditions

In the event of any inconsistency between the terms and conditions set forth in this Part I (the "**Project Loan Conditions**") and the General Terms and Conditions, the Project Loan Conditions shall prevail:

Country of Operation	SIERRA LEONE
Term	From the Effective Date until the date that all duties, liabilities and obligations of the Borrower under this Agreement and the Security Interest have finally been performed or discharged, which is anticipated to be up to 15 years after the Scheduled Conditional Acceptance Date.
Availability Period	From the date on which the Lender has issued a written notice confirming that all of the conditions precedent under this Agreement have been satisfied until the earlier of: (a) the Scheduled Conditional Acceptance Date; (b) the date on which the Loan Amount has been drawn in full; and (c) 1 year after the initial Disbursement is made pursuant to this Agreement.
Loan Amount	Sierra Leonean Leones equivalent of US$1,704,415.00 to be disbursed in accordance with the terms of this Agreement, including the Disbursement Schedule set out in ANNEXURE D.
Interest Rate	8.836% per cent per annum (the **Interest Rate**).
Default Rate	All overdue amounts under this Agreement shall bear interest at a default rate of the Interest Rate plus 2.5% per cent per annum (the **Default Rate**).
Monthly Payment	Sierra Leonean Leones equivalent of US$17,121.00, which amount is calculated as a function of the Loan Amount and inclusive of principal and interest, as more particularly described in ANNEXURE C. Further payment terms are specified in ANNEXURE C.
Site(s)	The following Site(s) for the Facilities: Zoodlabs (SL) Limited, Freetown, Sierra Leone, as more particularly set out in ANNEXURE B.

Notice Address	**Lender**: C/o Axis Fiduciary Ltd 2nd Floor, The Axis 26 Cybercity Ebene 72201 Mauritius Email: energynotices@crossboundary.com **Borrower**: Zoodlabs (SL) Limited 1 Bendu Drive Lumley Beach Freetown Sierra Leone Email: davar@zoodlabs.com
Designated Representative	**Lender**: Name: Matthew Tilleard Phone: +254 (0) 717 996 158 Email: matt.tilleard@crossboundary.com **Borrower**: Name: Davar Fazaeli Phone: +1(305) 450 8018 Email: davar@zoodlabs.com

Part II

General Terms and Conditions

1. DEFINITIONS AND INTERPRETATION

Unless otherwise defined or required by the context in which any term appears:

1.1.1. capitalized terms used herein have the meaning provided in ANNEXURE A;
1.1.2. the singular includes the plural and vice versa;
1.1.3. the words “herein,” “hereof” and “hereunder” refer to this Agreement as a whole and not to any particular section or subsection or Annexure of this Agreement;
1.1.4. references to any agreement, document or instrument mean such agreement, document or instrument as amended, modified, supplemented or replaced from time to time as permitted by this Agreement;
1.1.5. the words “include,” “includes” and “including” mean include, includes and including “without limitation”; and
1.1.6. the captions or headings in this Agreement are strictly for convenience and shall not be considered in interpreting this Agreement.

2. LOAN AMOUNT AND LOAN PURPOSE

2.1. The Lender undertakes to make available to the Borrower the Loan Amount in accordance with the terms and conditions of this Agreement.

2.2. The Loan Amount shall be exclusively utilized by the Borrower to finance the design, construction, installation, testing and commissioning of the Facilities at the Site(s).

3. COMMENCEMENT AND DURATION

3.1. This Agreement shall commence on the Effective Date and shall, subject to the further provisions as agreed herein, continue for the Term.

3.2. The Lender’s obligations under this Agreement shall automatically terminate once the total liabilities of the Borrower under this Agreement are repaid in full, including interest and other charges.

3.3. The Lender shall have no responsibilities relating to the Facilities under any circumstances, including upon termination or expiry of this Agreement, irrespective of the reason underlying such termination or expiry.

4. CONDITIONS PRECEDENT

4.1. The Lender's obligation to make available the Loan Amount pursuant to this Agreement shall be conditioned upon receipt by the Lender of the following documents and evidence in form and substance satisfactory to the Lender:

4.1.1. evidence that this Agreement has been executed as a deed by the Lender and the Borrower;
4.1.2. evidence that the Construction Agreement has been executed by the Borrower and a Contractor approved by the Lender and duly licensed to perform the services in the Country of Operation;
4.1.3. evidence that the documents related to the design, execution, construction, completion of the Facilities and remedying of any defects, have been provided to the Borrower by a Contractor approved by the Lender and duly licensed to perform the services in the Country of Operation, and that all documents have been approved by the Lender;
4.1.4. all Approvals required to be obtained from all relevant authorities prior to installation of the Facilities are in full force and effect and evidence of such has been shared with the Lender, including an environmental impact assessment being carried out on the Sites (if applicable) which meets the International Finance Corporation Standards and has been approved by

the Lender;

4.1.5. evidence that each document required by this Agreement, or reasonably requested by the Lender, has been executed, filed, registered or recorded in order to create in favour of the Lender the Security Interest (including the delivery to the Lender of the Letter of Credit) and that all stamping and registration charges, inclusive of penalty, have been paid to the relevant entity in respect of this Agreement and the Security Interest;

4.1.6. a letter of direction which includes the funds flow information for the disbursement of the proceeds of the Loan Amount and wire instructions that set forth the location to which such funds shall be sent;

4.1.7. a copy of the certificate of incorporation and constitutive documents (including the Certificate of Business Registration) of the Borrower, duly certified by a director or secretary of the Borrower;

4.1.8. a copy of the resolution of the board of directors of the Borrower, duly certified by a director or secretary of the Borrower, certifying that as at the date of the certificate, the directors of the Borrower have authority to enter into this Agreement, grant the Security Interest and receive the Loan Amount and otherwise perform their obligations pursuant to this Agreement and the Security Interest;

4.1.9. a certificate of an authorised signatory of the Borrower certifying that: (a) its representations and warranties in Clause 18.1 are correct and will be correct after each disbursement of the Loan Amount; and (b) that no Event of Default has occurred and is continuing or would result from the Lender making available the Loan Amount; and

4.1.10. a copy of any other authorisation or document, opinion or assurance which the Lender considers to be necessary or desirable in connection with the entry into and performance of the transactions contemplated in this Agreement.

5. DISBURSEMENT

5.1. During the Availability Period, the Borrower may deliver a written notice to the Lender requesting a Disbursement on the date that is 30 days before the intended date on which the Disbursement is to be made. The Lender shall, in respect of the initial disbursement, use its best endeavours to make payment within 14 days of achievement of the Conditions Precedent (Clause 4).

5.2. The amount of each Disbursement must:

5.2.1. be requested by the Borrower in accordance with the Disbursement Schedule;

5.2.2. not exceed the amount shown in the Disbursement Schedule for which that Disbursement relates; and

5.2.3. not exceed the undrawn portion of the Loan Amount.

5.3. As soon as reasonably practicable after receipt of the notice referred to in Clause 5.1, the Lender shall make the Disbursement to the Borrower.

5.4. The obligation on the Lender to make each Disbursement is subject to the conditions that:

5.4.1. no Event Default has occurred and is continuing or shall result from the making of the Disbursement;

5.4.2. the Borrower has provided to the Lender, proof of payment to the Contractor in respect of the previous Disbursement made by the Lender relating to the Facilities;

5.4.3. the Borrower has provided copies, each in form and substance satisfactory to the Lender, of invoice(s) received by the Borrower under the Construction Agreement for the relevant amount to which the Disbursement relates and such other evidence as is reasonably required by the Lender in order for it to verify that the relevant milestone to which the Disbursement relates has been achieved;

5.4.4. prior to Disbursement of the final payment in accordance with the Disbursement Schedule, the Borrower shall provide evidence that an Operations & Maintenance Agreement has been executed by the Borrower and a Contractor approved by the Lender and duly licensed to perform the services in the Country of Operation, and is in form and substance satisfactory to the Lender;

5.4.5. the Borrower is not otherwise in breach of this Agreement or the Security Interest; and

5.4.6. the Borrower has provided a certificate of an authorised signatory of each of the Borrower certifying that the representations and warranties contained in Clause 18.1 in respect of the Borrower are true and correct on the proposed date on which the Lender is required to pay the Disbursement.

5.5. Any part of the Loan Amount undrawn at the end of the Availability Period shall be automatically cancelled.

6. PAYMENT

6.1. At the end of each month following the expiry of the Availability Period, the Borrower shall be provided by the Lender with a statement of account ("**Invoice**") which shall set out the Monthly Payment for the prior month and the calculation thereof. The Borrower shall pay to the Lender each Monthly Payment set out in each Invoice according to the payment terms in ANNEXURE C and by the sole means of electronic bank transfer, direct debit or direct bank transfer to the Lender's nominated account in immediately available funds without set off or counter claim.

6.2. If the Loan Amount has not been drawn down in full by the end of the Availability Period, the amount of each Monthly Payment shall be reduced proportionately, and such reduction shall be applied to each Monthly Payment on a pro rata basis. The Lender shall calculate the new amount of each Monthly Payment and shall notify the Borrower accordingly.

6.3. The Borrower shall not reduce or delay any Monthly Payment to the Lender because of any alleged or actual underperformance of the Facilities.

6.4. The Borrower may not re-borrow any principal amount of the Loan Amount that is prepaid or repaid.

6.5. The Borrower may, by giving the Lender not less than 20 Business Days' prior notice, prepay the whole or any part of the Loan Amount.

6.6. The Borrower shall be required to provide to the Lender, proof of all payments to the Contractor in respect of the construction and commissioning of the Facilities, within five (5) days of any such payment being made.

7. INTEREST

7.1. The Loan Amount shall bear interest at the Interest Rate, accruing from the date the Loan Amount is first disbursed by the Lender to the Borrower until the date such Loan Amount is repaid.

7.2. Interest in respect of the Loan Amount shall accrue and be calculated on the basis of a 365-day year and the actual number of days elapsed (actual days/365). The Borrower shall make interest payments to the Lender as part of each Monthly Payment.

7.3. In the event that any Monthly Payment remains unpaid on its due date such overdue amount shall bear interest at the Default Rate from that date until repaid.

8. APPROVALS

The Borrower shall be responsible for and bear the cost of all Approvals necessary for construction, operation, and financing of the Facilities.

9. SECURITY INTEREST

9.1. The Borrower shall grant to the Lender as security for the Loan Amount, the Security Interest. All present and future amounts owing in respect of this Agreement shall be secured by the Security Interest.

9.2. In respect of the Security Interest, the Borrower each:

9.2.1. agree not to allow any other interest in it or claim against the Facilities, not to sell or lease the Facilities or to give them or allow them to serve as collateral for any other obligation;
9.2.2. hereby appoints the Lender as its irrevocable attorney to perform any acts which are necessary to protect or realise the Security Interest in the event of an Event of Default;
9.2.3. that the Lender may, delegate, cede, transfer, make over or assign all or any part of its right, title and interest in the payments due to it by the Borrower pursuant to this Agreement or the Security Interest.

9.3. To the extent permitted by Applicable Law, the Borrower shall not directly or indirectly cause, create, incur, assume or suffer to exist any mortgage, pledge, lien, charge, security interest, encumbrance or claim of any nature on the Site or the Facilities other than the Security Interest.

10. TAXES AND FEES

10.1. All sums payable by the Borrower under this Agreement shall be paid:

10.1.1. together with the addition of such Taxes or similar charges as are legally payable on those sums; and
10.1.2. net of any exchange control fees, transaction fees or similar charges (if applicable), which shall be for the Borrower's own account.

The Borrower shall indemnify the Lender for and hold the Lender harmless against any such Taxes and any liability arising therefrom or with respect thereto.

10.2. The Parties shall cooperate and take all steps reasonably and lawfully available to them, to obtain double taxation or other relief.

10.3. The Lender and the Borrower shall each pay their own legal and other expenses incurred in relation to the preparation and negotiation of this Agreement.

10.4. The Borrower shall pay the cost of any Taxes and other costs related to any registration required for this Agreement and the Security Interest, including but not limited to stamp duty.

10.5. Without prejudice to Clause 10.4, the Borrower shall pay all costs incurred by the Lender in connection with the enforcement of, or the preservation of any rights under, this Agreement and the Security Interest.

11. INSURANCE

11.1. The Borrower shall obtain and maintain from the Conditional Acceptance Date, at its own expense, insurances on and in relation to the Facilities, its business and assets against those risks and to the extent as is usual for companies incorporated in the Country of Operation carrying on in the same or substantially similar business, including:

11.1.1. Public liability insurance with a limit of US$ 1,500,000 per occurrence and in the aggregate, and
11.1.2. Assets all risk insurance over the Facilities, which shall include in its scope, cover against natural disasters, loss or damage caused by accidental damage, fire, explosion, burglary, theft, flood, lightning, hail, wind, and damage due to animals, vehicles or falling trees.

11.2. All insurances will name the Lender as loss payee, other than for insurances concerning payments to the Contractor under the Construction Agreement or other third parties, and the Lender shall be named as insured in the relevant policies.

11.3. All insurance policies must be with reputable independent insurance companies or underwriters.

11.4. Any insurance proceeds resulting from physical loss or damage shall be applied by the Borrower in the prepayment of the outstanding Loan Amount, alternatively, may be applied in the rebuilding of the Facilities as discussed between the Parties and agreed by the Lender.

12. NOTICE

12.1. Any notice or other communication given to a party under or in connection with this Agreement or the Security Interest shall be in writing and shall be delivered to the notice address of the relevant Party that is included in the Project Loan Conditions.

12.2. Any Party hereto shall be entitled to change its notice address from time to time, provided that any new notice address selected by either Party and any such change shall only be effected upon receipt of notice in writing by the other Party of such change.

12.3. All notices, demands or communications from one Party to another made pursuant to this Agreement shall be validly served if sent by way of:

12.3.1. pre-paid registered post to the recipient Party's notice address (in which case, deemed service shall be 5 (five) Business Days after posting);
12.3.2. email to that Party's email address (in which case, deemed service of the email shall be when the email is received in readable form); or
12.3.3. in-person delivery at the recipient Party's notice address, which must in turn be confirmed after delivery by way of an email to the recipient Party's email address.

12.4. Any notice given under or in connection with this Agreement or the Security Interest must be in the English language.

13. ASSIGNMENT

13.1. The Lender may assign any of its rights under this Agreement or the Security Interest or transfer all its rights or obligations by novation without consent from the Borrower.

13.2. The Borrower shall not assign any of their respective rights or obligations under this Agreement or the Security Interest without written consent from Lender and any attempted assignment without such consent shall be null and void.

14. CHANGE IN OWNERSHIP; SALE

14.1. The Parties agree that in the event of change in ownership where the Site(s) are transferred to an unrelated third party (the "**New Owner**"), the New Owner will assume all the obligations of the Borrower under this Agreement. The Parties also acknowledge that in the event that the tax treatment of the Monthly Payment is changed due to the tax residency status of the New Owner then the New Owner will increase the Monthly Payments such that the Lender receive the same amount of Monthly Payment as it did when the Borrower was making the payment.

14.2. The Borrower has the following options available in the event of a sale of the Site(s) or termination of possession through a Change in Ownership, as the case may be:

14.2.1. the Borrower may transfer its rights and obligations to the New Owner, subject to written consent given by the Lender, which written consent shall not unreasonably be withheld; or
14.2.2. the Borrower may terminate the Agreement and its obligation to make further payment, through settlement of all or any part of then outstanding Loan Amount and payment of any other amounts accrued under this Agreement, together with interest thereon at the Default Rate, compounded annually from the date on which such amounts were drawn down from the Loan Amount to the date of termination of the Agreement.

14.3. If the Borrower fails to comply with the above options, it will be in default of this Agreement.

15. INFORMATION

15.1. The Borrower shall, throughout the Term, provide quarterly unaudited accounts to the Lender as soon as they are available and no later than 45 days after the end of the period to which they relate and audited accounts to the Lender as soon as they are available and no later than 120 days after the end of the period to which they relate.

15.2. The Borrower shall ensure that all audited accounts delivered under this Agreement are prepared in accordance with generally accepted accounting principles and practices which are consistently applied in its jurisdiction of business.

15.3. The Borrower shall, throughout the Term, provide to the Lender copies of any written updates it may be providing to any of its investors or other lenders regarding its efforts to raise additional debt or equity financings.

15.4. The Borrower shall provide the Lender with monthly performance reports detailing the Facilities' energy production in kWh, solar irradiation data for the month, scheduled and unscheduled outages, maintenance tasks carried out and reported health and safety incidents.

16. UNDERTAKINGS

16.1. The Borrower shall ensure that the undertakings contained in this Clause 16.1 shall be complied with during the Term:

16.1.1. the payment obligations of the Borrower under this Agreement and the Security Interest shall rank at least equally and rateably with all of its other present and future unsecured payment obligations, except for obligations mandatorily preferred by law applying to companies generally;

16.1.2. the Borrower shall promptly obtain and maintain all consents or authorisations under any law or regulation to enable it to properly perform its obligations under this Agreement and the Security Interest and to ensure the legality, validity, enforceability and admissibility in evidence of this Agreement and the Security Interest;

16.1.3. the Borrower shall promptly notify the Lender or any potential or actual Event of Default and the steps being taken by the Borrower (as the case may be) to remedy it; and

16.1.4. the Borrower shall each carry on their businesses in a proper and efficient manner and shall not materially change the general nature of their businesses from that carried on at the date of this Agreement; and

16.1.5. neither the Construction Agreement nor the Operation & Maintenance Agreement shall be modified in any material way without the prior written consent of the Lender and the Borrower shall diligently pursue their rights under the Construction Agreement and the Operation & Maintenance Agreement.

17. EVENTS OF DEFAULT

17.1. Each of the following events shall be an "**Event of Default**":

17.1.1. the Borrower fails to pay the Lender any amounts due and payable under this Agreement in the manner stipulated herein and such failure continues for five (5) Business Days from receipt of notice from Lender of such amount being due;

17.1.2. the Borrower fails to pay the Contractor any previous Disbursement made by the Lender relating to the Facilities;

17.1.3. any representation made by the Borrower in connection with this Agreement, the Security Interest or any related document is incorrect or misleading in a material respect;

17.1.4. the Borrower fails to cure any material breach of its obligations arising out of this Agreement, other than those breaches referred to elsewhere in this Clause 17.1, within thirty (30) days after written notice of such breach was given to the Borrower by the Lender;

17.1.5. any material provision of this Agreement or the Security Interest becomes ineffective or unenforceable for any reason;

17.1.6. the Borrower ceases to carry on business, stops payment of its debts or any class of them, or enters into any compromise or arrangement in respect of its debts or any class of them, or any step is taken to do any of those things;

17.1.7. the Borrower becomes Insolvent or becomes subject to bankruptcy, insolvency, receivership or similar proceedings, which in the case of such proceedings have not been terminated, stayed or dismissed within sixty (60) days after it was commenced;

17.1.8. any assets of the Borrower become the subject to any material legal process that is not discharged within thirty (30) days;

17.1.9. the Contractor has not completed, to the reasonable satisfaction of both the Borrower and Lender, the Pre-assembly Work within 183 days after the Effective Date.

17.1.9.1. If the Pre-assembly Work is delayed for reasons beyond the control of the Borrower and Contractor, the Parties shall, acting reasonably, agree to an appropriate number of days to extend the Event of Default stipulated in Clause 17.1.9; and

17.1.10. the Conditional Acceptance Date (as defined in the Construction Agreement) has not been achieved within 407 days of the Effective Date; and

17.2. Upon an Event of Default, the Lender may, at its sole and absolute discretion, and without prejudice to any rights it may have under Applicable Law, take one or more of the following actions:

17.2.1. demand repayment of all or any part of then outstanding Loan Amount and payment of any other amounts accrued under this Agreement, together with interest thereon at the Default Rate, compounded annually from the date on which such amounts were drawn down from the Loan Amount to the date of termination of the Loan Amount;

17.2.2. declare that all or any part of then outstanding Loan Amount is repayable, and any other amounts under this Agreement are payable, on demand by the Lender at any time, together with interest thereon at the Default Rate, compounded annually from the date on which such amounts were drawn down from the Loan Amount to the date of termination of the Loan Amount;

17.2.3. exercise any or all of its rights, remedies, powers or discretions under the Security Interest; or

17.2.4. cancel the Loan Amount.

18. REPRESENTATION & WARRANTIES

18.1. Each Party represents and warrants to the other Parties that:

18.1.1. it is legally established to do business in its relevant country of incorporation;

18.1.2. the execution and performance of this Agreement and the Security Interest is duly authorized as required by its constitutive documents, and does not breach any law, rules, regulations or requirements affecting or binding that Party;

18.1.3. there is no legal or administrative action pending or threatened that would prohibit or impair that Party from performing its obligations under this Agreement or the Security Interest might materially and adversely affect that Party's ability to perform its obligations under this Agreement, the Security Interest or its financial condition or operations;

18.1.4. this Agreement and the Security Interest constitutes a valid, legal and binding obligation of that Party in accordance with the terms thereof;

18.1.5. the execution, delivery and performance by that Party of this Agreement and the Security Interest does not require the consent of any trustee or holder of indebtedness that has not been obtained and will not breach any provision of, or constitute a material default under, any other agreement or instrument to which it is a party or by which it is bound; and

18.1.6. no Event of Default has occurred and is continuing.

19. DISPUTE RESOLUTION

19.1. Save as otherwise specifically provided in this Agreement, any Dispute between the Parties in regards to the interpretation of, the effect of, the Parties' respective rights and obligations under,

or any matter arising out of this Agreement shall be referred in the first instance to the respective chief executive officers (or their Designated Representative) of the Parties, who shall meet as soon as possible after referral of the Dispute to them and shall use their bona fide best efforts to resolve the Dispute in an amicable and expeditious manner.

19.2. In the event that the said chief executive officers (or their respective Designated Representatives, as the case may be) shall fail, for whatever reason, to resolve the Dispute by not later than twenty (20) Business Days after the Dispute has been referred to them, either Party shall be entitled to initiate Dispute resolutions described below.

19.3. Failing amicable resolution of a Dispute, the Dispute shall be referred to and finally resolved by arbitration administered by the LCIA under the rules of the London Court of International Arbitration, which rules are deemed to be incorporated by reference into this Clause 19.

19.3.1. The seat, or legal place, of arbitration shall be London.
19.3.2. The language to be used in the arbitral proceeding shall be English.

19.4. Nothing herein contained shall prevent or prohibit any Party from applying to the appropriate court for interim relief.

19.5. The provisions of this Clause 19 shall be severable from every other part of this Agreement and shall survive the termination or cancellation for whatever reason of this Agreement.

20. GOVERNING LAW

This Agreement and any Dispute shall be governed by and construed in accordance with the laws of England and Wales.

21. CONFIDENTIALITY OF INFORMATION

21.1. Except where otherwise agreed in writing, each Party agrees to keep confidential and not disclose to any person (except to its employees, officers, partners, advisors, lenders or directors who are engaged in the implementation, financing and execution of the transactions referred to in this Agreement, and then only to the extent necessary to carry out its duties and obligations under this Agreement) all Confidential Information, that the Party may receive from any other Party or from any other source, relating to this Agreement and matters which are subject to the terms of this Agreement and will use, or cause to be used, such information solely for the purposes of the performance of that Party's obligations under the terms of this Agreement.

22. MISCELLANEOUS

22.1. This Agreement may not be amended, modified or varied except by a written agreement executed by the Parties.

22.2. No indulgence which a Party may grant to the other shall constitute a waiver of any of the rights of the other Party. No waiver of any rights hereunder shall be binding unless such waiver is in writing.

22.3. If any provision of this Agreement is held invalid or unenforceable by any court of competent jurisdiction, the other provisions of this Agreement shall remain in full force and effect. Any provision of this Agreement held invalid or unenforceable only in part or degree shall remain in full force and effect to the extent not held invalid or unenforceable.

22.4. This Agreement constitutes a complete and exclusive statement of the terms of the agreement between the Parties with respect to the subject matter contained herein and supersedes all prior agreements between the Parties.

22.5. This Agreement may be executed in any number of counterparts and this has the same effect

as if the signatures on the counterparts were on a single copy of this Agreement.

22.6. A person who is not a party to this agreement has no right under the Contracts (Rights of Third Parties) Act 1999 to enforce or enjoy the benefit of any term of this Agreement.

(SIGNATURE PAGE TO FOLLOW)

THIS AGREEMENT HAS BEEN SIGNED AND DELIVERED AS A DEED ON THE DATE STATED BELOW.

SIGNED FOR AND ON BEHALF OF LENDER

Signed at Nairobi on this 9th day of August in the presence of the undersigned witnesses:

Name: Matthew Tilleard
Capacity: Managing Director, CrossBoundary Energy

Sign. .....

Witness No.1
Name: PIETER JOUBERT
CHIEF INVESTMENT OFFICER
CROSSBOUNDARY ENERGY

Sign. .....

Company Seal:

SIGNED FOR AND ON BEHALF OF BORROWER

Signed at.....on this.....day of.....in the presence of the undersigned witnesses:

Director 1
Name:
Capacity:

Sign. .....

Witness No.1
Name:

Sign. .....

Company Seal:

THIS AGREEMENT HAS BEEN SIGNED AND DELIVERED AS A DEED ON THE DATE STATED BELOW.

SIGNED FOR AND ON BEHALF OF LENDER

Signed at.....on this.....day of.....in the presence of the undersigned witnesses:

Name: Matthew Tilleard
Capacity: Managing Director, CrossBoundary Energy

Sign. .....

Witness No.1
Name:

Sign. .....

Company Seal:

SIGNED FOR AND ON BEHALF OF BORROWER

Signed at Ft Lauderdale this 2 day of Aug in the presence of the undersigned witnesses:

Director 1
Name: DAVAR. FARAGI.
Capacity: Chairman / CEO.

Sign. .....

Witness No.1
Name:
Dauns Kipakimes
Chief Operating officer

Sign. .....

Company Seal:

3rd / Aug / 2021

ANNEXURE A

1. DEFINITIONS

1.1. Unless defined elsewhere in this Agreement, capitalised words or expressions shall have the meaning as are respectively assigned to them in this Annexure A:

1.2. **"Applicable Law**" means all applicable laws of any Government Authority in the Country of Operation and/or England and Wales, including, without limitation, regulations, judgments, injunctions, writs and orders or like actions of any Government Authority and rules and regulations of any regional, province, county, municipal or other Government Authority.

1.3. **"Approvals"** means any approval, consent, license, permit, authorisation or other permission granted by a Government Authority, as may be applicable to the Facilities.

1.4. "**Availability Period**" has the meaning given to that term in the Project Loan Conditions.

1.5. **"Business Day"** means any day other than a Saturday, a Sunday or a nationally declared public holiday in the Country of Operation or the country in which a Party is registered.

1.6. "**Conditional Acceptance Date**" means the date on which the Facilities have been completed and conditional acceptance achieved as defined in the Construction Agreement.

1.7. "**Confidential Information**" shall mean all information and materials disclosed, provided or otherwise made accessible to a Party in connection with the Facilities, including, but not limited to, the policies, services, processes, procedures, methods, formulations, facilities, products, plans, affairs, transactions, organisations, business connections, and all information relating to that Party of a confidential nature but excludes information that the Part can prove:

1.7.1. subsequent to the date of the Agreement, became part of the public domain otherwise than as a result of disclosure by that Party or its personnel directly or indirectly in breach of this Agreement, or

1.7.2. was in the public domain at the date of the Agreement; and

1.7.3. was lawfully in its possession at the time of disclosure by the Borrower.

1.8. "**Construction Agreement**" means the agreement(s) entered into between the Contractor and Borrower at or around the time of this Agreement by which the Contractor will design, install, test, and commission the Facilities for the benefit of Borrower.

1.9. "**Contractor**" means Netis Holding Limited, alternatively the contractor(s) (as approved by the Lender) responsible for delivery of the completed Facilities to the Borrower and/or provision of operations and maintenance services for the Facilities to the Borrower following the Conditional Acceptance Date.

1.10. "**Default Rate**" has the meaning given to that term in the Project Loan Conditions.

1.11. "**Disbursement**" means the principal amount of each disbursement of the Loan Amount by the Lender.

1.12. "**Disbursement Schedule**" means the disbursement schedule set out in ANNEXURE D of this Agreement, as revised in accordance with ANNEXURE D.

1.13. "**Dispute**" means any controversy or claim arising out of or in connection with this Agreement including, without limitation, any dispute arising out of or in connection with its formation, interpretation, validity, performance, or termination (including non-contractual disputes or claims).

1.14. **"Effective Date"** means the date upon which the last Party signs this Agreement.

1.15. "**Event of Default**" has the meaning given to that term in Clause 17.1.

1.16. "**Exchange Control Approval**" means the approval received by the Borrower from the Bank of Sierra Leone permitting the Borrower to make loan interest and capital repayments to the Lender outside of Sierra Leone.

1.17. "**Facilities**" means a solar electric power generation system including equipment, solar panels, energy storage, support structure, protection, inverters, controls, meters, switches, connections, conduit, wires and all related equipment installed pursuant to this Agreement as a removable, temporary fixture at the Site. The Facilities include all support structures and panelling erected for the purpose of fixing panels, inverters, and other equipment as applicable such as generator equipment or energy storage equipment installed per this Agreement and any work that is required to the existing electrical system in order to allow the new equipment to be integrated correctly.

1.18. **"Government Authority"** means the Country of Operation's government and any subdivision thereof, any provincial or local governmental authority with jurisdiction or authority over the Borrower, the Contractors, the Facilities or any part thereof, any department, authority, instrumentality, agency or judicial body of the Country of Operation or any such provincial or local governmental authority, and any court, tribunal or independent regulatory agency or body in the Country having jurisdiction over the Borrower, the Contractors, the Facilities or any part thereof.

1.19. **"Insolvent"** or "**Insolvency**" means where a Party:

1.19.1. ceases to trade;
1.19.2. enters into administration
1.19.3. has a receiver or a provisional liquidator appointed over any of its assets, undertaking or income;
1.19.4. is subject to an order or notice issued by, a court or other authority or tribunal of competent jurisdiction for its winding up or striking off;
1.19.5. is the subject of anything analogous to the foregoing under the laws of any relevant jurisdiction;
1.19.6. is unable to pay its debts as they fall due;
1.19.7. passes a resolution for its winding up or, in the case of a limited liability partnership, proposes or determines that it should be wound up (save for the purpose of a solvent reconstruction or amalgamation); or,
1.19.8. proposes, makes or is subject to, a company voluntary arrangement or a composition with its creditors generally, or makes an application to a court of competent jurisdiction for protection from its creditors generally.

1.20. "**Interest Rate**" has the meaning given to that term in the Project Loan Conditions.

1.21. "**Invoice**" has the meaning given to that term in Clause 6.1.

1.22. "**Letter of Credit**" means a first demand bank guarantee or letter of credit issued by a financial institution which is acceptable to the Lender and which:

1.22.1. is in an amount equivalent to: six (6) months of Monthly Payments calculated pursuant to ANNEXURE C as of the date of issue, renewal or replenishment;
1.22.2. if subject to a fixed expiry date, shall be renewed by the Borrower no later than ten (10) Business Days prior to such expiry date; and
1.22.3. shall be replenished by the Borrower within ten (10) Business Days after any demand made thereon by the Lender so that the amount of the Letter of Credit is at least the amount required therefor pursuant to Clause 1.22.1 above.

1.23. **"Loan Amount"** means a secured loan facility in an aggregate amount not exceeding the amount more particularly described in the Project Loan Conditions.

1.24. "**Monthly Payment**" means each monthly amount required to be paid by the Borrower to the

Lender in order to repay the Loan Amount, as more particularly described in ANNEXURE C.

1.25. "**Operations & Maintenance Agreement**" means the agreement(s) entered into between the Contractor and Borrower by which the Contractor will monitor, maintain, and service the operations of the Facilities for the benefit of Borrower.

1.26. **"Pre-assembly Works"** means the appropriate pre-assembly works and testing and verification that the required equipment (including solar modules and mounting frames) is ready to ship to the Site.

1.27. "**Project Loan Conditions**" has the meaning given to that term in Part I of this Agreement.

1.28. "**Scheduled Conditional Acceptance Date**" means the date, being 185 days after the issuance of the notice to proceed under the Construction Agreement, on which the Site 7 (landing station) is scheduled to be completed and conditional acceptance achieved (as defined in the Construction Agreement).

1.29. "**Security Interest**" means each of the following, in form and substance acceptable to the Lender:

1.29.1. a first ranking Sierra Leone law debenture over the Borrower's present and future assets comprising the Facilities;

1.29.2. an English law assignment of contracts to the Lender in respect of the Construction Agreement, Operation & Maintenance Agreement and Related Company Guarantee (if applicable), together with a relevant direct agreement or acknowledgment executed by the relevant counterparties; and

1.29.3. the Letter of Credit.

1.30. **"Site"** means the Borrower's [leased] land on which the Facilities are to be directly placed, as shown in the Project Loan Conditions and Annexure B.

1.31. "**Taxes**" means any and all present future taxes, levy, import, premium, duty or other charge of a similar nature, including without limitation, gross receipts, sales, turn-over, value added, use consumption, property, income, franchise, capital, occupational, license, excise and documentary stamps taxes, and customs and other duties, assessments, or fees, however imposed, withheld, levied, or assessed by any country or government subdivision thereof or any other taxing authority together with interest thereon and penalties in respect thereof.

1.32. **"Term"** has the meaning given to that term in the Specific Conditions.

1.33. **"US$" or "$"** means the United States Dollar or the equivalent of the lawfully prevailing currency of the United States of America.

ANNEXURE B

SITE AREA LAYOUT

Site name	Latitude	Longitude
Site 1: Tower Hill	08°29'14.29" N	013°14'02.16" W
Site 2: Milton Margai College	08°25'30.56" N	013°17'03.44" W
Site 3: Fourah Bay College	08°28'42.46" N	013°13'19.44" W
Site 4: Leicester Peak	08°26'59.36" N	013°13'26.65" W
Site 5: Bintumani Hotel	08°29'47.72" N	013°17'13.85" W
Site 6: Youyi Building	08°28'37.26" N	013°14'52.98" W
Site 7 Lumley (landing station)	08°27'35.58" N	013°16'43.26" W

ANNEXURE C

MONTHLY PAYMENT AND PAYMENT TERMS

Table of Payments (Sierra Leonean Leones equivalent of the US$ set out below)				
			Loan Amount >>>	**US$1,704,415.00**
Month of Term	**Monthly Principal Repayment of Loan Amount**	**Monthly Interest Payment on Loan Amount**	**Total Monthly Payment of Loan Amount**	**Outstanding Principal of Loan Amount at end of Month**
1	US$ 4,571	US$ 12,550	US$ 17,121	US$ 1,699,844
2	US$ 4,605	US$ 12,517	US$ 17,121	US$ 1,695,239
3	US$ 4,639	US$ 12,483	US$ 17,121	US$ 1,690,600
4	US$ 4,673	US$ 12,448	US$ 17,121	US$ 1,685,927
5	US$ 4,707	US$ 12,414	US$ 17,121	US$ 1,681,220
6	US$ 4,742	US$ 12,379	US$ 17,121	US$ 1,676,478
7	US$ 4,777	US$ 12,344	US$ 17,121	US$ 1,671,701
8	US$ 4,812	US$ 12,309	US$ 17,121	US$ 1,666,889
9	US$ 4,848	US$ 12,274	US$ 17,121	US$ 1,662,041
10	US$ 4,883	US$ 12,238	US$ 17,121	US$ 1,657,158
11	US$ 4,919	US$ 12,202	US$ 17,121	US$ 1,652,238
12	US$ 4,955	US$ 12,166	US$ 17,121	US$ 1,647,283
13	US$ 4,992	US$ 12,129	US$ 17,121	US$ 1,642,291
14	US$ 5,029	US$ 12,093	US$ 17,121	US$ 1,637,262
15	US$ 5,066	US$ 12,056	US$ 17,121	US$ 1,632,197
16	US$ 5,103	US$ 12,018	US$ 17,121	US$ 1,627,094
17	US$ 5,141	US$ 11,981	US$ 17,121	US$ 1,621,953
18	US$ 5,178	US$ 11,943	US$ 17,121	US$ 1,616,775
19	US$ 5,217	US$ 11,905	US$ 17,121	US$ 1,611,558
20	US$ 5,255	US$ 11,866	US$ 17,121	US$ 1,606,303
21	US$ 5,294	US$ 11,828	US$ 17,121	US$ 1,601,009
22	US$ 5,333	US$ 11,789	US$ 17,121	US$ 1,595,677
23	US$ 5,372	US$ 11,749	US$ 17,121	US$ 1,590,305
24	US$ 5,411	US$ 11,710	US$ 17,121	US$ 1,584,893
25	US$ 5,451	US$ 11,670	US$ 17,121	US$ 1,579,442
26	US$ 5,491	US$ 11,630	US$ 17,121	US$ 1,573,951

27	US$ 5,532	US$ 11,590	US$ 17,121	US$ 1,568,419
28	US$ 5,573	US$ 11,549	US$ 17,121	US$ 1,562,846
29	US$ 5,614	US$ 11,508	US$ 17,121	US$ 1,557,232
30	US$ 5,655	US$ 11,466	US$ 17,121	US$ 1,551,577
31	US$ 5,697	US$ 11,425	US$ 17,121	US$ 1,545,881
32	US$ 5,739	US$ 11,383	US$ 17,121	US$ 1,540,142
33	US$ 5,781	US$ 11,341	US$ 17,121	US$ 1,534,361
34	US$ 5,823	US$ 11,298	US$ 17,121	US$ 1,528,538
35	US$ 5,866	US$ 11,255	US$ 17,121	US$ 1,522,672
36	US$ 5,909	US$ 11,212	US$ 17,121	US$ 1,516,762
37	US$ 5,953	US$ 11,168	US$ 17,121	US$ 1,510,809
38	US$ 5,997	US$ 11,125	US$ 17,121	US$ 1,504,812
39	US$ 6,041	US$ 11,080	US$ 17,121	US$ 1,498,771
40	US$ 6,085	US$ 11,036	US$ 17,121	US$ 1,492,686
41	US$ 6,130	US$ 10,991	US$ 17,121	US$ 1,486,556
42	US$ 6,175	US$ 10,946	US$ 17,121	US$ 1,480,380
43	US$ 6,221	US$ 10,901	US$ 17,121	US$ 1,474,159
44	US$ 6,267	US$ 10,855	US$ 17,121	US$ 1,467,892
45	US$ 6,313	US$ 10,809	US$ 17,121	US$ 1,461,580
46	US$ 6,359	US$ 10,762	US$ 17,121	US$ 1,455,220
47	US$ 6,406	US$ 10,715	US$ 17,121	US$ 1,448,814
48	US$ 6,453	US$ 10,668	US$ 17,121	US$ 1,442,361
49	US$ 6,501	US$ 10,621	US$ 17,121	US$ 1,435,860
50	US$ 6,549	US$ 10,573	US$ 17,121	US$ 1,429,311
51	US$ 6,597	US$ 10,524	US$ 17,121	US$ 1,422,714
52	US$ 6,646	US$ 10,476	US$ 17,121	US$ 1,416,069
53	US$ 6,694	US$ 10,427	US$ 17,121	US$ 1,409,374
54	US$ 6,744	US$ 10,378	US$ 17,121	US$ 1,402,631
55	US$ 6,793	US$ 10,328	US$ 17,121	US$ 1,395,837
56	US$ 6,843	US$ 10,278	US$ 17,121	US$ 1,388,994
57	US$ 6,894	US$ 10,228	US$ 17,121	US$ 1,382,100
58	US$ 6,945	US$ 10,177	US$ 17,121	US$ 1,375,156
59	US$ 6,996	US$ 10,126	US$ 17,121	US$ 1,368,160
60	US$ 7,047	US$ 10,074	US$ 17,121	US$ 1,361,113
61	US$ 7,099	US$ 10,022	US$ 17,121	US$ 1,354,014

62	US$ 7,151	US$ 9,970	US$ 17,121	US$ 1,346,862
63	US$ 7,204	US$ 9,917	US$ 17,121	US$ 1,339,658
64	US$ 7,257	US$ 9,864	US$ 17,121	US$ 1,332,401
65	US$ 7,311	US$ 9,811	US$ 17,121	US$ 1,325,091
66	US$ 7,364	US$ 9,757	US$ 17,121	US$ 1,317,726
67	US$ 7,419	US$ 9,703	US$ 17,121	US$ 1,310,308
68	US$ 7,473	US$ 9,648	US$ 17,121	US$ 1,302,834
69	US$ 7,528	US$ 9,593	US$ 17,121	US$ 1,295,306
70	US$ 7,584	US$ 9,538	US$ 17,121	US$ 1,287,723
71	US$ 7,639	US$ 9,482	US$ 17,121	US$ 1,280,083
72	US$ 7,696	US$ 9,426	US$ 17,121	US$ 1,272,387
73	US$ 7,752	US$ 9,369	US$ 17,121	US$ 1,264,635
74	US$ 7,809	US$ 9,312	US$ 17,121	US$ 1,256,825
75	US$ 7,867	US$ 9,254	US$ 17,121	US$ 1,248,958
76	US$ 7,925	US$ 9,196	US$ 17,121	US$ 1,241,033
77	US$ 7,983	US$ 9,138	US$ 17,121	US$ 1,233,050
78	US$ 8,042	US$ 9,079	US$ 17,121	US$ 1,225,008
79	US$ 8,101	US$ 9,020	US$ 17,121	US$ 1,216,907
80	US$ 8,161	US$ 8,960	US$ 17,121	US$ 1,208,746
81	US$ 8,221	US$ 8,900	US$ 17,121	US$ 1,200,525
82	US$ 8,282	US$ 8,840	US$ 17,121	US$ 1,192,243
83	US$ 8,343	US$ 8,779	US$ 17,121	US$ 1,183,901
84	US$ 8,404	US$ 8,717	US$ 17,121	US$ 1,175,497
85	US$ 8,466	US$ 8,656	US$ 17,121	US$ 1,167,031
86	US$ 8,528	US$ 8,593	US$ 17,121	US$ 1,158,503
87	US$ 8,591	US$ 8,530	US$ 17,121	US$ 1,149,912
88	US$ 8,654	US$ 8,467	US$ 17,121	US$ 1,141,258
89	US$ 8,718	US$ 8,403	US$ 17,121	US$ 1,132,540
90	US$ 8,782	US$ 8,339	US$ 17,121	US$ 1,123,757
91	US$ 8,847	US$ 8,275	US$ 17,121	US$ 1,114,911
92	US$ 8,912	US$ 8,209	US$ 17,121	US$ 1,105,999
93	US$ 8,978	US$ 8,144	US$ 17,121	US$ 1,097,021
94	US$ 9,044	US$ 8,078	US$ 17,121	US$ 1,087,977
95	US$ 9,110	US$ 8,011	US$ 17,121	US$ 1,078,867
96	US$ 9,177	US$ 7,944	US$ 17,121	US$ 1,069,690

97	US$ 9,245	US$ 7,876	US$ 17,121	US$ 1,060,445
98	US$ 9,313	US$ 7,808	US$ 17,121	US$ 1,051,132
99	US$ 9,382	US$ 7,740	US$ 17,121	US$ 1,041,750
100	US$ 9,451	US$ 7,671	US$ 17,121	US$ 1,032,300
101	US$ 9,520	US$ 7,601	US$ 17,121	US$ 1,022,779
102	US$ 9,590	US$ 7,531	US$ 17,121	US$ 1,013,189
103	US$ 9,661	US$ 7,460	US$ 17,121	US$ 1,003,528
104	US$ 9,732	US$ 7,389	US$ 17,121	US$ 993,796
105	US$ 9,804	US$ 7,318	US$ 17,121	US$ 983,992
106	US$ 9,876	US$ 7,245	US$ 17,121	US$ 974,116
107	US$ 9,949	US$ 7,173	US$ 17,121	US$ 964,167
108	US$ 10,022	US$ 7,099	US$ 17,121	US$ 954,145
109	US$ 10,096	US$ 7,026	US$ 17,121	US$ 944,050
110	US$ 10,170	US$ 6,951	US$ 17,121	US$ 933,880
111	US$ 10,245	US$ 6,876	US$ 17,121	US$ 923,635
112	US$ 10,320	US$ 6,801	US$ 17,121	US$ 913,314
113	US$ 10,396	US$ 6,725	US$ 17,121	US$ 902,918
114	US$ 10,473	US$ 6,648	US$ 17,121	US$ 892,445
115	US$ 10,550	US$ 6,571	US$ 17,121	US$ 881,895
116	US$ 10,628	US$ 6,494	US$ 17,121	US$ 871,267
117	US$ 10,706	US$ 6,415	US$ 17,121	US$ 860,561
118	US$ 10,785	US$ 6,337	US$ 17,121	US$ 849,776
119	US$ 10,864	US$ 6,257	US$ 17,121	US$ 838,912
120	US$ 10,944	US$ 6,177	US$ 17,121	US$ 827,968
121	US$ 11,025	US$ 6,097	US$ 17,121	US$ 816,943
122	US$ 11,106	US$ 6,015	US$ 17,121	US$ 805,837
123	US$ 11,188	US$ 5,934	US$ 17,121	US$ 794,649
124	US$ 11,270	US$ 5,851	US$ 17,121	US$ 783,379
125	US$ 11,353	US$ 5,768	US$ 17,121	US$ 772,026
126	US$ 11,437	US$ 5,685	US$ 17,121	US$ 760,589
127	US$ 11,521	US$ 5,600	US$ 17,121	US$ 749,068
128	US$ 11,606	US$ 5,516	US$ 17,121	US$ 737,462
129	US$ 11,691	US$ 5,430	US$ 17,121	US$ 725,771
130	US$ 11,777	US$ 5,344	US$ 17,121	US$ 713,994
131	US$ 11,864	US$ 5,257	US$ 17,121	US$ 702,130

132	US$ 11,951	US$ 5,170	US$ 17,121	US$ 690,178
133	US$ 12,039	US$ 5,082	US$ 17,121	US$ 678,139
134	US$ 12,128	US$ 4,993	US$ 17,121	US$ 666,011
135	US$ 12,217	US$ 4,904	US$ 17,121	US$ 653,794
136	US$ 12,307	US$ 4,814	US$ 17,121	US$ 641,486
137	US$ 12,398	US$ 4,723	US$ 17,121	US$ 629,088
138	US$ 12,489	US$ 4,632	US$ 17,121	US$ 616,599
139	US$ 12,581	US$ 4,540	US$ 17,121	US$ 604,018
140	US$ 12,674	US$ 4,448	US$ 17,121	US$ 591,344
141	US$ 12,767	US$ 4,354	US$ 17,121	US$ 578,577
142	US$ 12,861	US$ 4,260	US$ 17,121	US$ 565,716
143	US$ 12,956	US$ 4,166	US$ 17,121	US$ 552,760
144	US$ 13,051	US$ 4,070	US$ 17,121	US$ 539,709
145	US$ 13,147	US$ 3,974	US$ 17,121	US$ 526,561
146	US$ 13,244	US$ 3,877	US$ 17,121	US$ 513,317
147	US$ 13,342	US$ 3,780	US$ 17,121	US$ 499,975
148	US$ 13,440	US$ 3,681	US$ 17,121	US$ 486,535
149	US$ 13,539	US$ 3,583	US$ 17,121	US$ 472,997
150	US$ 13,639	US$ 3,483	US$ 17,121	US$ 459,358
151	US$ 13,739	US$ 3,382	US$ 17,121	US$ 445,619
152	US$ 13,840	US$ 3,281	US$ 17,121	US$ 431,779
153	US$ 13,942	US$ 3,179	US$ 17,121	US$ 417,837
154	US$ 14,045	US$ 3,077	US$ 17,121	US$ 403,792
155	US$ 14,148	US$ 2,973	US$ 17,121	US$ 389,644
156	US$ 14,252	US$ 2,869	US$ 17,121	US$ 375,391
157	US$ 14,357	US$ 2,764	US$ 17,121	US$ 361,034
158	US$ 14,463	US$ 2,658	US$ 17,121	US$ 346,571
159	US$ 14,570	US$ 2,552	US$ 17,121	US$ 332,002
160	US$ 14,677	US$ 2,445	US$ 17,121	US$ 317,325
161	US$ 14,785	US$ 2,337	US$ 17,121	US$ 302,540
162	US$ 14,894	US$ 2,228	US$ 17,121	US$ 287,646
163	US$ 15,003	US$ 2,118	US$ 17,121	US$ 272,643
164	US$ 15,114	US$ 2,008	US$ 17,121	US$ 257,529
165	US$ 15,225	US$ 1,896	US$ 17,121	US$ 242,304
166	US$ 15,337	US$ 1,784	US$ 17,121	US$ 226,967

167	US$ 15,450	US$ 1,671	US$ 17,121	US$ 211,516
168	US$ 15,564	US$ 1,557	US$ 17,121	US$ 195,952
169	US$ 15,679	US$ 1,443	US$ 17,121	US$ 180,274
170	US$ 15,794	US$ 1,327	US$ 17,121	US$ 164,480
171	US$ 15,910	US$ 1,211	US$ 17,121	US$ 148,569
172	US$ 16,027	US$ 1,094	US$ 17,121	US$ 132,542
173	US$ 16,145	US$ 976	US$ 17,121	US$ 116,397
174	US$ 16,264	US$ 857	US$ 17,121	US$ 100,132
175	US$ 16,384	US$ 737	US$ 17,121	US$ 83,748
176	US$ 16,505	US$ 617	US$ 17,121	US$ 67,243
177	US$ 16,626	US$ 495	US$ 17,121	US$ 50,617
178	US$ 16,749	US$ 373	US$ 17,121	US$ 33,868
179	US$ 16,872	US$ 249	US$ 17,121	US$ 16,996
180	US$ 16,996	US$ 125	US$ 17,121	US$ 0

Currency	The Borrower shall make the Monthly Payment in US$ to the Lender.
Payment Terms	Payment of each Monthly Payment is due within 30 calendar days of the date of the relevant Invoice. If the Lender has not received the Monthly Payment within this time, Monthly Payments shall incur interest calculated at the Default Rate. Any Monthly Payment received by the Lender shall first be set-off against interest accrued.

ANNEXURE D

DISBURSEMENT SCHEDULE

Table of Disbursements

(Sierra Leonean Leones equivalent of the US$ set out below)

Tranche	**Timing (Days)**	**Disbursement (%)**	**Disbursement Amount (US$)**	**Cumulative (US$)**
Down payment	0	40%	681,766	681,766
Release of Goods (prior Shipping)	45	35%	596,545	1,278,311
Equipment on Site	105	8%	136,353	1,414,664
COD Site 1	120	1%	17,044	1,431,709
COD Site 2	135	1%	17,044	1,448,753
COD Site 3	150	1%	17,044	1,465,797
COD Site 4	165	1%	17,044	1,482,841
COD Site 5	180	1%	17,044	1,499,885
COD Site 6	195	1%	17,044	1,516,929
COD Site 7 (Landing)	210	5%	85,221	1,602,150
Final Acceptance	240	6%	102,265	1,704,415